

CV-24-010714 CERVANTEZ, YENI ALEJANDRA CORTEZ vs CITY OF TURLOCK - Defendant City of Turlock's Motion to Compel Plaintiff's Further Discovery Responses and Request for Issue and Evidence Sanctions in the Alternative - CONTINUED to October 13, 2026, at 8:30 am in Department 22.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: Defendant submitted a declaration stating that the parties are working towards resolving their discovery dispute by September 18, 2026. Accordingly, the Court CONTINUES the hearing to October 13, 2026, at 8:30 am in Department 22. Moving party to file and serve at least five court days before the hearing either a notice of withdrawal or a declaration describing any narrowing of the issues. CV-26-000923 –WELLS FARGO BANK NA vs MARTINEZ, AARON

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CV-24-010714 - CERVANTEZ, YENI ALEJANDRA CORTEZ vs CITY OF TURLOCK - Defendant City of Turlock's Motion to Compel Plaintiff's Further Discovery Responses and Request for Issue and Evidence Sanctions in the Alternative - CONTINUED to October 13, 2026, at 8:30 am in Department 22.

Defendant submitted a declaration stating that the parties are working towards resolving their discovery dispute by September 18, 2026.

Accordingly, the Court CONTINUES the hearing to October 13, 2026, at 8:30 am in Department 22. Moving party to file and serve at least five court days before the hearing either a notice of withdrawal or a declaration describing any narrowing of the issues.

CV-26-000923 –WELLS FARGO BANK NA vs MARTINEZ, AARON - Plaintiff's Motion for Judgment on the Pleadings and of Nonappearance – CONTINUED to September 22, 2026, at 8:30 am in Department 22.

On August 10, 2026, Plaintiff filed a motion for judgment on the pleadings and of nonappearance. There is no opposition or reply on file.

The motion is procedurally defective. It fails to comply with Code of Civil Procedure section 439, which requires that parties meet and confer “in person, by telephone, or by video conference” before filing a motion for judgment on the pleadings. Here, the effort to meet and confer was insufficient. The only attempt to comply with Code of Civil Procedure section 439 was the delivery of a written communication sent via email on July 16, 2026, to which Defendant did not respond. (Declaration of Kirean D. McKee, ¶¶ 1–2.)

A communication sent by email is insufficient. The Legislature’s specification of the authorized methods for meeting and conferring reflects its belief that more personal forms of communication—beyond written exchanges—are better suited to resolving disputes informally, thereby reducing the burden on both the courts and the parties.

Accordingly, the Court CONTINUES the hearing to September 22, 2026, at 8:30 am in Department 22. Moving party shall attempt to meet and confer by one of the methods set forth in Code of Civil Procedure § 439 by no later than six court days before the hearing. Moving Party to file and serve a declaration no later than five court days before the hearing describing the efforts to meet and confer and any narrowing of the issues.